



# What Is Intellectual Property?

- Term used to describe works of the mind
  - Distinct and “owned” or created by a person or group
  - Under intellectual property law, owners are granted certain exclusive rights to a variety of intangible assets, such as musical, literary, and artistic works; discoveries and inventions; and words, phrases, symbols, and designs.

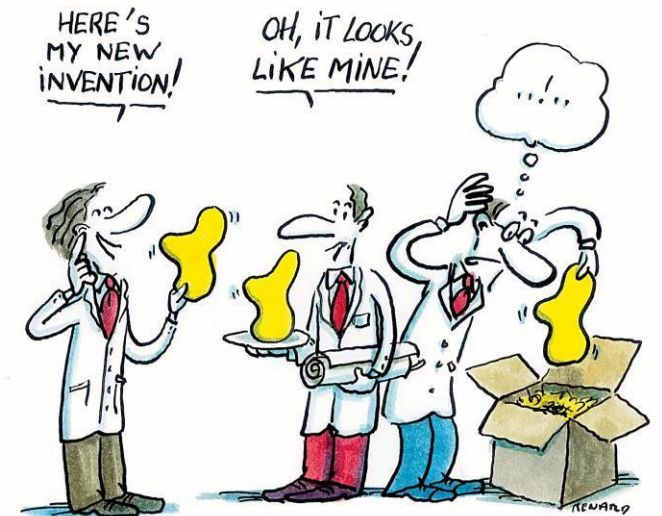
## Kinds of Property

- Movable Property
  - Car, Pen, Furniture, Dress
- Immovable Property
  - Land, Building
- Intellectual Property
  - Literary works, inventions

# Intellectual Property

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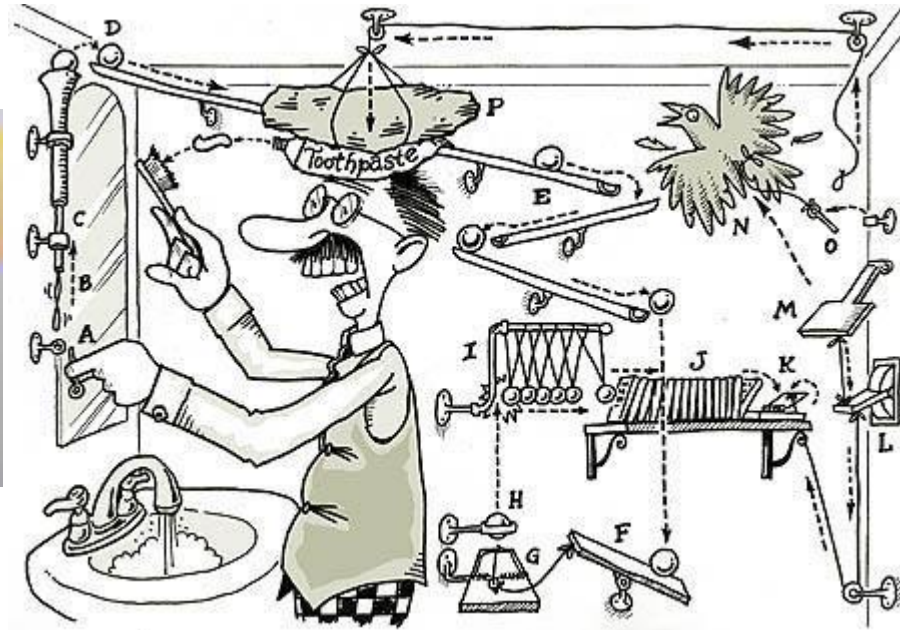
- ❑ An intangible personal property resulting from mental processes
- ❑ Protection of the owners right to protect or profit from the use of his or her property



# Tangible Assets – Identify and Inventory



# Intangible Assets – Difficult to Identify



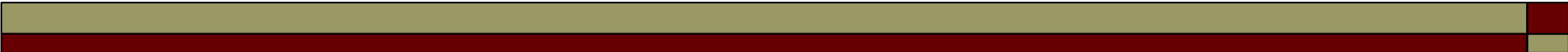


# Definition of Intellectual Property

“Intellectual Property shall include the rights relating to  
– literary, artistic and scientific works,  
– performances of performing artists,  
**inventions in all fields of human endeavor:**

- scientific discoveries
- Industrial designs
- trademarks, service marks and commercial names and designations
- protection against unfair competition

and all other rights resulting from intellectual activity in the industrial, scientific, literary or artistic fields.”

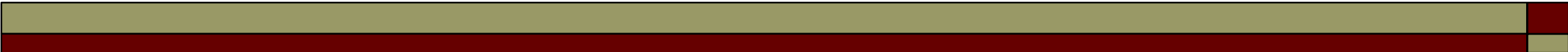


# Intellectual Property laws

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- ❑ Federal rights
- ❑ International protections
- ❑ Common law rights

*The legal foundation for U.S. intellectual property rights was laid by the Founders in 1787, in the very first Article of the U.S. Constitution, which outlined the precepts of our democratic society. In Article 1, Section 8, Clause 8 of the Constitution, Congress was given the authority to “**promote the progress of Science and useful Arts, by securing for limited times to authors and inventors the exclusive right to their respective writings and discoveries**”*



# Intellectual Property Types

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- ☐ **Patent**
- ☐ **Copyright**
- ☐ **Trademarks/service marks**
- ☐ **Trade Names**
- ☐ **Industrial designs**



# Patent

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A patent is the *right to exclude* others from making, using, selling, or offering to sell the patented invention during the term of the patent

- ❑ **A legal Monopoly granted by government.**
- ❑ **Allows the inventor an exclusive right to make, use, and sell an invention for twenty (20) years.**
- ❑ **Patent applicant must demonstrate to the patent office that an invention, discovery, or design is *non-obvious, novel, and useful*.**



# Patent

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- ❑ A patent holder gives notice that an article or design is patented by placing on it the word ``patent" or ``pat.," plus the patent number.
- ❑ If a firm make, uses or sells another's patented design, product, or process without the patent owner's permission, **it will be illegal**. Example of patent products like inventions as:
  - ❑ The Lightbulb.
  - ❑ The Telephone. ...
  - ❑ The Computer. ...
  - ❑ Bluetooth. ...

# Requirements for a Patent

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- To obtain a patent, the new invention must be:
  - **Novel** – not known or used in this country and not published anywhere.
  - **Nonobvious** – cannot be an obvious way to do something (new idea).
  - **Useful** – must have some application, even if not commercially practical.

# Copyright



- ❑ An intangible right given to the author or originator of *certain literary or artistic productions*.
- ❑ Works created after January 1, 1978, are automatically given statutory copyright protection for the life of the author plus seventy years.
- ❑ Copyrights owned by publishing houses expire ninety-five years after publication or a one hundred-twenty-years from the date of creation, whichever is first.

intellectual services patent  
legal rights  
**COPYRIGHT**  
registered licence protected law  
trademark

# Copyrights examples

## □ Works of authorship include:

- Literary works
- Musical
- Dramatic
- Pictorial, graphic, sculptural
- Motion pictures, other audiovisual
- Sound recordings
- Architectural works

- Books
- Sheet music, Recordings
- Photographs
- Paintings
- Software
- Company brochures
- Website content

# Copyrights

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- Copyright holder owns the EXCLUSIVE right:
  - to reproduce
  - to prepare derivative works
  - to distribute copies
  - to publicly perform
  - to publicly display



# Copyright

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- ❑ Exists automatically upon creation of an original work but
- ❑ Placement of copyright symbol © *gives notice and to*
- ❑ judicially enforce copyright requires Registration with the US Copyright Office

# Copyright Fair Use Doctrine

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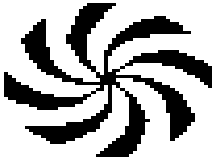


- Reproductions of copyrighted works for, "criticism, comment, news reporting, *teaching (including multiple copies for classroom use)*, scholarship, or research."

# Computers

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- ❑ **Software – copyrightable aspects:**
  - Codes – both source and object codes
  - Structure – how a program accomplishes a task
  - Look and Feel – the way a program looks and uses symbols
- ❑ **Digital Millennium Copyright Act**
  - Makes it illegal to delete copyright information, such as the author's name, and then distribute the work via the internet.
  - It is also illegal to circumvent encryption or scrambling devices.



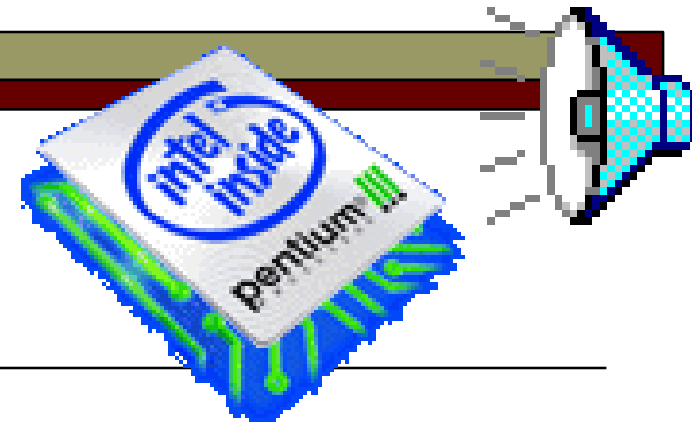
# TRADE MARK

- **A name of an enterprise or a Mark** capable of being represented *graphically, distinguishing the goods or services* of one person from those of others e. g., LUX, *coca cola*, **APPLE**
- **Trade Mark can be -**
  - *sign , words, letters, numbers,*
  - *drawings, pictures, logo,*
  - *colors or combination of colors,*
  - *shape of goods,*
  - *graphic representation or packaging or*
  - *any combination of the above as applied to an article or a product.*

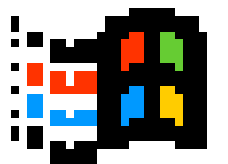


# Trademark

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- ❑ Assists customer in identifying a product without confusion.
- ❑ If a business uses the trademark of another, consumers are misled as to who made the goods.



# Registration of Trade Mark

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- ❑ Trade Marks are registered by national trade mark registries and are valid in that country
- ❑ Registration is made after examination and publication
- ❑ Period of registration is for 10 years but can be renewed indefinitely

# Kinds of Trademarks

- ❑ Marks on goods
- ❑ Service Marks
- ❑ Certification trademark
- ❑ Collective Marks
- ❑ Well known marks
- ❑ Trade Names

## WELLKNOWN MARKS

- *Coca Cola* for soft drink
- **Toblerone** (Triangular-shaped chocolates)



## Trade Names

- Godrej- Furniture, Refrigerators, Storewell, Compactor etc



- GE- Bulbs



# TRADE MARK

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- ❑ **Service Marks include** banking, education, finance, insurance, real estate, entertainment, repairs, transport, conveying news and information, advertising etc
- ❑ **Certification Trade marks:** Certified by the Proprietor as having characteristics like geographical origin, ingredients, quality e.g. **AGMARK, WOOLMARK Certification mark cannot be used as a trade mark.**
  - ❑ Certifies that the goods on which it is applied are made of 100% wool. It is registered in 140 countries and licensed to the companies which assure that they will comply with the strict standards set out by the Wool mark company, the owner of the mark.



WOOLMARK



# Trade Names

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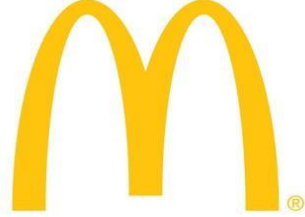
- ❑ Identifies a company, partnerships or business.
- ❑ Cannot be registered under federal law unless they are also used as trademarks or service marks (used to identify services).
- ❑ Common law protection.

***Microsoft***

# Ownership and Registration

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- ❑ First person to use a mark in trade owns it.
- ❑ Registration is not necessary, but does have some advantages.
  - Protection becomes nationwide
  - Gives public notification of trademark protection
  - Holders of registered marks have first priority to use the mark as an Internet domain name



i'm lovin' it®

# Service Mark

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- Any word, name, symbol, device, or any combination, used, or intended to be used, in commerce, to identify and distinguish the services of one provider from services provided by others, and to indicate the source of the services.

## Service Marks

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A service mark is the same as a trademark, but it identifies a service rather than a product. When a service mark is federally registered, the standard registration symbol is ®. Before it is registered, the registration symbol is <sup>SM</sup>.

# Trade Secrets

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- ❑ A trade secret is a formula, device, process, method, or compilation of information that, when used in business, gives the owner an advantage over competitors who do not know it (business plans, budgets).
- ❑ **The Economic Espionage Act of 1996.**
  - This statute prohibits any attempt to steal trade secrets for the benefit of someone other than the owner, including for the benefit of any foreign government.

# What is an Industrial Design?

- ‘Design’ means only the features of shape, configuration, pattern, ornament or composition of lines or colors *applied* to any article whether in two dimensional or three dimensional or in both forms, by any industrial process or means, whether manual, mechanical or chemical, separate or combined, which in the finished article *appeal to* and are judged solely by *the eye*.

# Consumer Products

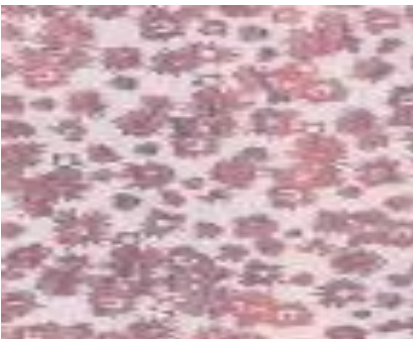


# Pharmaceutical Product





# Textile & Jewellery





## **Rights of the Registered Proprietor**

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- The proprietor of the registered design has the exclusive right to apply the design to any article in the class in which the design is registered
- Period of protection is ten years extendable by 5 years.

# Intellectual Property Sources

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- Intellectual Property made simple by Nolo Press
  - × [Patent, Copyright & Trademark](http://www.nolo.com/product/pct_sub62.html)  
*by Attorney Stephen Elias*  
[http://www.nolo.com/product/pct\\_sub62.html](http://www.nolo.com/product/pct_sub62.html)
- Outstanding website on copyright law
  - ⓧ <http://www.benedict.com/>
- U.S. Patent and Trademark Office
  - 🌐 <http://www.uspto.gov/>
- U.S. Copyright Office
  - 🌐 <http://www.loc.gov/copyright/>